LESSON 1: THE BILL OF RIGHTS

Article III of the 1987 Philippine Constitution

NSTP 1 | MIDTERM (PROF. ANNA LIZA MONES)

What is the Bill of Rights?

A **declaration and enumeration** of a person's rights and privileges that the Constitution protects against violation by the **government**, or by **individuals or groups**. It is a **charter of liberties** for the individual and a **limitation upon the power of the State**.

- Found in **Article III**; has **22 sections**

SECTION 1: DUE PROCESS AND EQUAL PROTECTION

- No person shall be deprived of **life, liberty or property** without **due process of law**, nor denied the **equal protection of the laws**
- **Due process** – the government may take life, freedom or belongings only through **fair legal procedures**
  - Notice of the charges, a fair chance to defend yourself, fair treatment under the law
- **Equal protection** – everyone treated fairly and equally regardless of **race, religion, gender, social status, nationality or beliefs**

RIGHT TO LIBERTY (5 PARTS)

- **Right to exist** – live and not be deprived of life or freedom without lawful reason
- **Free from personal restraint or servitude** – no slavery, forced labor or unjust imprisonment
- **Right to contract** – legal agreements: a lease, a job, a business
- **Choose one's employment** – no one can force you into a job
- **Right to labor** – work and earn a living; the government protects safe, fair conditions
- **Protection of property** – own, use and enjoy property (money, belongings, land, houses, anything legally owned)

CRIMES (REVISED PENAL CODE, AS GROUPED IN THE SLIDES)

CRIMES AGAINST PERSON (LIFE, BODY, SEXUAL INTEGRITY)

- **Homicide** – unlawful killing **without** a qualifying circumstance
- **Murder** – killing **with** a qualifying circumstance: **treachery** or **evident premeditation**
- **Parricide** – killing **family members**
- **Infanticide** – killing a newborn **less than 3 days old**
- **Abortion** – unlawfully causing or helping end a pregnancy
- **Giving assistance to suicide** – helping someone take their own life
- **Physical injuries** – **serious** (disability, prolonged incapacity) or **slight** (bruises, little treatment)
- **Rape** – sexual acts against a person under circumstances punishable by law

CRIMES AGAINST LIBERTY

- **Kidnapping** – taking or carrying away a person against their will
- **Illegal detention** – keeping someone from leaving, e.g. locking them in a room
- **Serious illegal detention** – detention under circumstances the law specifies, e.g. abducting and holding captive
- **Coercion** – forcing someone through **violence, threats or intimidation**
- **Grave threats** – threatening a **serious crime** to intimidate or control
- **Unlawful arrest** – arrest without authority, e.g. a **fake police officer**
- **Human trafficking** – recruiting, transporting or harboring people for **exploitation** (fake job offer)
- **Arbitrary detention** – detention without legal grounds **by a public officer**

CRIMES AGAINST PROPERTY

- **Robbery** – taking property **with violence, intimidation or force**
- **Theft** – taking property **without** violence
- **Qualified theft** – theft made graver, e.g. an **employee** entrusted with access steals
- **Estafa (swindling)** – **deceit** to get money or property
- **Arson** – intentionally **setting fire**
- **Malicious mischief** – deliberately damaging property (smashing windows)
- **Carnapping** – taking a **motor vehicle** with intent to gain
- **Fencing** – dealing in property known to be **stolen**
- **Trespass to property** – unlawfully entering or staying in premises
- **Forgery** – falsifying a **document or signature**

Note: Murder vs homicide = **qualifying circumstance**. Robbery vs theft = **violence**. Arbitrary vs illegal detention = **public officer**.

SECTIONS 2–3: SEARCHES, SEIZURES AND PRIVACY

- **Section 2** – people are secure in their **persons, houses, papers and effects** against unreasonable searches and seizures
- Warrants issue only upon **probable cause** determined **personally by the judge** after examining the complainant and witnesses **under oath or affirmation**
- A warrant must **particularly describe** the place to be searched and the persons or things to be seized
- **Person** – everybody, **citizens and aliens**, accused or not
- **Houses** – also garages, warehouses, shops, stores, offices, safety deposit vaults
- **Papers and effects** – includes sealed letters and packages; **effects** = personal belongings
- **Consent** makes a search legal; without consent, police need **probable cause or a warrant**
- **Search warrant** – written order signed by a judge, directed to a **peace officer**, to search for property and bring it to court
- **Warrant of arrest** – written order to take a person into custody to answer for an offense
- **Section 3** – privacy of communication and correspondence is **inviolable**
  - Except: a **lawful order of the court**, or when **public safety or order** requires it, as prescribed by law
- Evidence obtained in violation of Sections 2–3 is **inadmissible for any purpose**

SECTIONS 4–11: FREEDOMS AND CIVIL RIGHTS

- **4** – freedom of **speech, expression, press**; right to **peaceably assemble** (without violence) and **petition** the government
  - Speech: spoken, written, symbolic | Expression: art, music | Press: media without censorship | Petition: complaints, changes in laws
- **5** – freedom of **religion**; no **religious test** for civil or political rights
- **6** – **liberty of abode** (impaired only by a **court order**) and **travel** (only for **national security, public safety, public health**)
- **7** – **right to information** on matters of public concern: official records, documents, government research data
- **8** – right to form **unions, associations, societies** (public and private sectors)
- **9** – private property taken for public use needs **just compensation**
- **10** – **non-impairment clause**: no law impairing the obligation of **contracts**
- **11** – **free access to courts** and legal assistance, not denied by reason of **poverty**

SECTIONS 12–17: RIGHTS OF THE ACCUSED

- **12** – **custodial investigation**: right to **remain silent** and to **competent, independent counsel** (provided if you can't afford one)

- Waived only **in writing and in the presence of counsel**
- No torture, threats, **secret detention, solitary, incommunicado**; forced confessions are **inadmissible**
- Torturers face **criminal and civil penalties**; victims get compensation and rehabilitation

- **13** – **bail** before conviction, except offenses punishable by **reclusion perpetua** (like life imprisonment) when evidence of guilt is **strong**
  - **Surety** – money or property | **Recognizance** – a promise to return
  - Not impaired even when **habeas corpus** is suspended; protects the **presumption of innocence**
- **14** – **rights of the accused**: presumed **innocent**; counsel; know the charges; speedy, impartial, public trial; **confront witnesses**; **compulsory process** for witnesses and evidence
  - Trial may proceed in absentia after **arraignment** if the accused was notified and the absence is unjustified
- **15** – **writ of habeas corpus**: bring a detained person to court and explain the detention; suspended only in **invasion or rebellion**
- **16** – **speedy disposition** of cases before judicial, quasi-judicial, administrative bodies
- **17** – no person compelled to be a **witness against himself**; the **burden of proof** is on the government

SECTIONS 18–22: PUNISHMENT AND LAWS

- **18** – no detention solely for **political beliefs**; no **involuntary servitude** except as punishment for a crime after conviction
- **19** – no **excessive fines** (must be **proportionate**) or cruel, degrading, inhuman punishment (incl. **psychological**: threats, isolation, humiliation)
  - **Death penalty** only if **Congress** provides it for **heinous crimes**; death penalties already imposed → **reclusion perpetua**
  - Detainees (awaiting trial) are protected from sub-standard facilities
- **20** – no imprisonment for **debt** or non-payment of a **poll tax**
- **21** – **double jeopardy**: not twice put in jeopardy for the same offense; a law and an ordinance for the same act → one bars the other
- **22** – no **ex post facto law** (punishes an act retroactively) or **bill of attainder** (guilty without trial)

Note: Section 12 = person **under investigation**; Section 14 = person **already accused**. Section 2 = searches; Section 3 = privacy.

———— END OF LESSON ————

LESSON 2: LEADERSHIP TRAINING

Chapter 4

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What is leadership?

The ability of an individual or a group to **influence and guide** followers or members of an organization; the ability to **motivate people to accomplish goals**.

CHARACTERISTICS OF A GOOD LEADER (10)

- **Vision** – knows where to go; makes people believe in the vision (country, community, family)
- **Wit** – **sound judgements and decisions** even in crucial situations
- **Passion** – intensely obsessed with their focus (business, sport, hobby)
- **Compassion** – for supporters and followers
- **Charisma** – captivating, charming; **draws people** toward them
- **Communication skills** – great **orators and persuaders**
- **Persistence** – attains goals **despite obstacles**
- **Integrity** – means what they say; **walks the talk**, keeps promises
- **Daring** – bold, **takes risks** amid fear and uncertainty
- **Discipline** – **self-control and order**

TRAITS OF A LEADER – MAXWELL (1999)

- **Character, charisma, commitment, communication, competence, courage** (six C's)

Note: Compassion is a characteristic, not one of Maxwell's traits; **competence** is Maxwell's, not one of the 10.

TRANSACTIONAL VS TRANSFORMATIONAL

TRANSACTIONAL

- **Corrective action** and mutual exchanges; rewards **only when expectations are met**
- Leader tells each person **what, when and how**
- Power through **rewards and coercion**: **patronage**, colonization, **vote-buying**

TRANSFORMATIONAL

- Starts from **members' needs**; rewards related to **effort**
- Leader **trusts subordinates**, gives space to **breathe and grow**
- Lives out values, approachable, accessible, **accepts pressure to perform**
- Broadens and elevates employees' interests; they look **beyond self-interest** for the group
- An organizational framework that brings people together around a **common vision**

13 BEHAVIORS OF A TRANSFORMATIONAL LEADER

- **1** Compelling **vision** of the future | **2 Stories and symbols** | **3** Strong **sense of purpose**, collective mission
- **4** Talks **optimistically**, confident goals will be met | **5** Does **the right thing**, not just things right | **6** Instills **pride**
- **7** Talks about **values and beliefs** | **8 Moral and ethical** consequences | **9** Seeks **different perspectives**
- **10** Challenge **old assumptions** (brainstorming) | **11 Teaching and coaching** | **12** Each employee's **needs, abilities, aspirations**
- **13 Compassionate, appreciative**, celebrates achievements

FOUR COMPONENTS

- **Individualized (idealized) influence** – a **role model**
- **Inspirational motivation** – **positive attitude** that inspires
- **Intellectual stimulation** – involves teams in decisions; **creativity → innovation**
- **Individualized consideration** – relationships; **individual support**

VIRTUOUS CYCLE OF LEADERSHIP CONTROL

- **1** Energetic, sympathetic, friendly, understanding → **enthusiastic cooperation**
- **2** Confident in the job → **confidence of followers**
- **3** Be an **example** to followers

7 HABITS OF HIGHLY EFFECTIVE PEOPLE

- **Be proactive** – take **responsibility** for your life
- **Begin with the end in mind** – know where you want to go; **envision the goal**
- **Put first things first** – **self-management**
- **Think win-win** – life as **cooperative**, not competitive
- **Seek first to understand, then to be understood** – **listen**
- **Synergize** – better results **as a group**
- **Sharpen the saw** – keep **updated**, sense of **humor**

TEAMWORK, TIME, DECISIONS

- **Teamwork** – working **collaboratively** with a group to achieve a goal
- **Time management** – arranging, organizing, scheduling, **budgeting** time for **effective work and productivity**
- **Decision-making** – selecting the **most logical choice** from two or more options
  - Identify **alternatives** → **evaluate** options vs objectives → **select** the best

INVOLVEMENT IN DECISION-MAKING (8)

- **Consensus or agreement** – **compromise** after all opinions are heard
- **Majority** – **voting**
- **Minority** – a few **powerful personalities** dominate, often unconsciously
- **Silent consensus** – agreement **without discussion**; unanimous; rarely for important issues
- **Clique** – a small group **plans beforehand**, secretly
- **Handclasp** – one **suggests**, another **commends** it
- **One-person decision** – quick, but hard to get **voluntary support** later
- **Plop** – deciding by **not deciding**

DIFFICULTIES IN DECISION-MAKING (7)

- **Fear of consequences** – division, disagreement
- **Conflicting loyalties** – member of **different groups**
- **Interpersonal conflicts** – personal differences, feelings
- **Hidden agenda** – a **secret motive**
- **Blundering methods** – rigid procedure, opinions over information, no consultation
- **Inadequate leadership** – restricts opinions; no help choosing methods
- **Clash of interest** – **opposing interests**

What marks a good leader?

The ability to **listen, learn and lead** followers toward goals; adept in **teamwork, time management and decision-making**.

———— END OF LESSON ————

LESSON 3: HEALTH AWARENESS

Chapter 6: communicable and non-communicable diseases

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THE DISEASE TRIANGLE

- Model of the interaction of **host, agent and environment**; predicts outcomes in **plant and public health**
- **Host** – age, sex, race, genes, previous diseases, **immune status**, religion, customs, occupation, marital status, family
- **Environment** – temperature, humidity, altitude, **crowding, housing**, water, milk, food, pollution, noise
- **Agent** – **biologic** (bacteria, viruses), **chemical** (poison, alcohol, smoke), **physical** (trauma, radiation, fire), **nutritional** (lack, excess)

COMMUNICABLE DISEASES

- Spread **person to person**, "**catching**", caused by **germs or pathogens** (viruses, bacteria, parasitic worms, fungi)
- **Food and water** – cholera, typhoid, hepatitis (jaundice) | **Air** – influenza, TB | **Mosquito** – malaria | **Bite wound with dust or rust** – tetanus

DENGUE FEVER

- One of **4 serotypes**, genus **Flavivirus**, family **Flaviviridae**
- Fever, rash, rapid pulse, dizziness, adynamia, insomnia, red eyes and throat, **pain in the bones**, anorexia, vomiting
- Mosquitoes are **daytime** biters; repellent **DEET, picaridin, IR3535**; long sleeves, **permethrin** on clothes; screens, **no standing water**

MALARIA

- **Plasmodium** parasite (**falciparum** most serious; vivax, ovale, malariae); vector: **female Anopheles**
- Flu-like illness, diarrhoea, vomiting, joint pains, fever; **a week up to a year** after infection
- Treatment depends on type, age, severity; prevention: **anti-malarial drugs**, avoid bites

CHOLERA

- Acute intestinal infection; **Vibrio cholerae** in food or water; incubation **< 1 day to 5 days**
- Diarrhea, vomiting, **loss of skin elasticity**, low blood pressure, **increased thirst**, rapid weight loss
- **Boiled or chlorinated water**, handwashing, wash fruits and vegetables, cook properly, eat hot food; report diarrhoea

AVIAN INFLUENZA (BIRD FLU) AND H1N1

- **Bird flu** – **influenza A** viruses chiefly in birds; cough, high fever, fatigue, headache, **nose bleed**, runny nose, upset stomach, loss of appetite
  - Avoid **poultry, birds, droppings**; cook poultry and eggs; avoid **wet and live poultry markets** abroad; mask if unwell
- **H1N1 (swine flu)** – "**quadruple reassortant**": **2 pig + 2 bird** flu genes
  - Systemic: fever | Psychological: lethargy, lack of appetite | Nasopharynx: runny nose, sore throat | Respiratory: cough | Gastric: nausea, vomiting | Intestinal: diarrhea
  - **Vaccinate** (only respiratory virus preventable by vaccine), wash hands, sanitizer, don't touch your face, eat right, exercise, **stay home 24 h** after fever

TYPHOID FEVER

- **Salmonella typhi**; **S. paratyphi** is milder; a **human carrier** deposits bacteria in food or water
- **White coating on the tongue**, **enlarged liver and spleen**, rash, intestinal ulcers, high fever, delirium, abdominal pain
- Hygiene, clean water, **sewage disposal, fly control**, cook well, **no raw eggs**, don't keep food warm or reheat

HIV/AIDS

- **HIV** – attacks **CD4 (T-helper)** cells | **AIDS** – the **most advanced stage**
- Spread by **body fluids**: unprotected sex, **sharing needles**, infected blood (rare: **screening**), **mother-to-child**, **needlestick** (occupational)
- **Early (acute)** – **2–4 weeks**, flu-like | **Clinical latency** – no symptoms; **5–10 years** untreated | **AIDS** – weight loss, night sweats, chronic diarrhea, TB, pneumonia
- Effects: **immune failure**, **neurological**, **social and psychological** (stigma), **economic**
- **No cure**; **ART** suppresses the virus, protects immunity, prevents AIDS, reduces transmission
- **PrEP** – before exposure, high risk | **PEP** – within **72 hours** after exposure
- Condoms, testing, no shared needles, safe transfusions, **ART in pregnancy**

NON-COMMUNICABLE DISEASES

- **Long duration, slow progression** (chronic); 4 major: **cardiovascular, diabetes, chronic respiratory, cancer**

BLOOD PRESSURE

- **Blood pressure** – force of blood on vessel walls; **hypertension** = high blood pressure
- **Systolic** – top number, heart **pumps** | **Diastolic** – bottom number, heart **rests**
- **Normal** ≤ **120/80** | **High** ≥ **140/90** | **Low** (slides) **110/60** = hypotension
- Table: elevated **120–129 and <80**; stage 1 **130–139 or 80–89**; stage 2 **≥140 or ≥90**; crisis **>180 and/or >120**
- Reduce salt, exercise, healthy weight, fresh food, no smoking, follow medical advice

HEART, STROKE, DIABETES

- **CVD** – heart or blood vessels; **atherosclerosis** (fatty deposits) and clots; risk factors: high BP, smoking, cholesterol, diabetes, inactivity, obesity, family history, ethnicity
- **Heart attack** – blocked flow to the heart; plaque in the **coronary arteries** may rupture → clot
- **Stroke** – sudden interruption of blood to the **brain**: **ischemic** (blockage, most) or **hemorrhagic** (vessel bursts)
- **Diabetes** – high blood glucose; **insulin** moves glucose into cells
  - **Type 1** – children, little or no insulin, **daily injections** | **Type 2** – adults, **~90%**, poor use of insulin; **healthy lifestyle** | **Gestational** – pregnancy; later type 2 risk

CANCER

- Abnormal cell growth that can **invade or spread**; **benign** tumors don't spread
- **Carcinoma** – skin or lining of organs; **most common** | **Sarcoma** – connective tissue | **Leukemia** – blood (4 types) | **Lymphoma** – lymphatic system | **Adenoma** – glands
- **Hodgkin** – **Reed-Sternberg** cells, orderly spread | **Non-Hodgkin** – usually none; B or T cells
- **Benign** – small, slow, localized | **Malignant** – large, fast, invasive, metastasizes
- Warning sign: **unexplained weight loss**

———— END OF LESSON ————